

Law Office of Yinka T. Omole

Attorneys At Law

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Via Regular Mail & E-mail: Judges@fmc.gov; gwolfson@mahoneykeane.com

June 3, 2021

Hon. Erin M. Wirth, Chief Judge
Office of Administrative Law Judges
Federal Maritime Commission
800 North Capitol St., NW
Washington, D.C. 20573

RE: Order Requiring Joint Status Report
Marie Carew d/b/a/ Holiday Shipping v. Maersk Line A/S et al.
Docket No.: 20-17

Dear Honorable Wirth:

On May 13, 2021, the Court issued a Scheduling Order in this case. Per the Court's order, the parties were to engage in a limited Discovery until June 28, 2021. The Court set May 28, 2021, to serve any discovery, and June 28, 2021, for responses. On Tuesday, June 1, 2021, the Court denied the undersigned's request to withdraw from the case. As such, the undersigned sent a set of six (6) interrogatories to Respondent on Wednesday, June 2, 2021. Mr. Wolfson, nevertheless, e-mailed back that his client would not participate in discovery and respond to the interrogatories. The undersigned suggested a resolution to the dispute to Mr. Wolfson and awaits a response. See attached. Respondent has not requested the Commission for a protective order from the interrogatories or further discovery.

Complainant limits her interrogatories to information and documents that Respondent and its subsidiary maintain in the course of business. After a series of efforts that span international boundaries, Complainant has found out that there are differences in business protocols and legal environments between Nigeria and the United States. Per Maersk's protocol in Nigeria, a Consignee collects and pays an invoice and obtains a *delivery order* from Maersk.¹ The Consignee's agent, in turn, presents the delivery order to the Nigeria Ports Authority (NPA) to get the final and actual release of the consignment. Maersk has simply turned away the Consignees that Complainant represents, refusing to issue them their invoices and release the *delivery order*.

Notwithstanding, Respondent maintains before this Commission that the Consignees' problems are with the NPA and beyond Maersk in Nigeria. The Consignees disagree with Maersk's assertion,

¹ <https://www.maersk.com/local-information/africa/nigeria/import>.

as such statement is contrary to each of their experiences. Maersk needs to introduce any *delivery order* that the company issued to any of the Consignees with the dates it issued the delivery order.

In the e-mail of June 2, 2021, which the undersigned sent to Mr. Wolfson, Complainant acknowledges that her discovery was five (5) days late. She nevertheless suggests that Respondent could utilize an additional one week after the deadline of June 28, 2021, for its responses. Again, Complainant tailors her requests to the specific issue remaining in the case and is not for a fishing expedition. Respondents' responses, in this case, are essential to vindicate the course of justice. Thus, the Complainant requests that the Commission orders the Respondent to respond to the limited discovery.

Respectfully submitted,

Law Office of Yinka T. Omole

/s/ Yinka Omole
Yinka T. Omole

Cc(Via e-mail): Garth S. Wolfson, Esquire

From: ylawfirm@gmail.com
To: "Garth Wolfson"
Subject: RE: Docket No. 20-17 - Marie Carew d/b/a/ Holiday Shipping v. Maersk Line S/A & John Does
Date: Wednesday, June 2, 2021 4:05:20 PM

Garth,

I understand that we should have served Discovery by the close of last Friday, May 28, 2021. As you equally know, the Judge rejected my motion to withdraw as counsel for Ms. Carew yesterday. While the denial of my motion to withdraw did not stay Discovery, I am constrained to pursue this limited Discovery. Your responses were not due until June 28, 2021. I will be willing to extend such responses for an extra one week if you're amenable to such.

Yinka.

From: Garth Wolfson <gwolfson@mahoneykeane.com>
Sent: Wednesday, June 2, 2021 3:15 PM
To: ylawfirm@gmail.com
Subject: RE: Docket No. 20-17 - Marie Carew d/b/a/ Holiday Shipping v. Maersk Line S/A & John Does

Dear Yinka,

We were operating under the understanding that the parties were foregoing formal discovery. But, in any event, the Judge's Scheduling Order dated May 13, 2021 required service of any discovery requests by May 28, 2021. Moreover, especially in light prior defaults, that Order took particular pains to admonish the parties to disregard the schedule at their peril. As such, we object to and hereby reject Holiday's discovery demands as untimely. Please also be advised that, to the extent Holiday may nonetheless be inclined to raise the matter with the Judge, Maersk would seek all available relief, including, *inter alia*, attorney's fees.

Thank you.

Best regards,

Garth S. Wolfson

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From: ylawfirm@gmail.com [<mailto:ylawfirm@gmail.com>]
Sent: Wednesday, June 02, 2021 1:56 PM
To: 'Garth S. Wolfson' <gwolfson@mahoneykeane.com>

Subject: Docket No. 20-17 - Marie Carew d/b/a/ Holiday Shipping v. Maersk Line S/A & John Does

Garth,

Attached, please find the Discovery of Ms. Marie Carew. Let me know if you have any questions or concerns.

Sincerely,

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